

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16

Honorable Vincent I. Parrett, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

July 15, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

- (1) The Court by calling **(408) 808-6856**, and
- (2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.E.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.scsccourt.org/general_info/ra_teams/video_hearings_teams.shtml
When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	24CV448840	<i>Skanska-Shimmick-Herzog v. LAN/T.Y. Lin, et al.</i>	Hearing on Verified Application of Robert J. Harris to appear <i>pro hac vice</i> for Cross-Defendant Hatch Associates Consultants, Inc. The Verified Application of Robert J. Harris to appear <i>pro hac vice</i> for Cross-Defendant Hatch Associates Consultants, Inc. is well supported and complies with California Rule of Court 9.40. Accordingly, the Verified Application is GRANTED in all respects. After this hearing, the Court will sign and file the Proposed Order that was filed with this Verified Application. SO ORDERED.
9:01 2	25CV483557	<i>Jane Doe v. Google LLC, et al.</i>	Hearing on Verified Application of Zara H. Shore to appear <i>pro hac vice</i> for Defendant Google LLC. The Verified Application of Cori Schreider to appear <i>pro hac vice</i> for Defendant Zara H. Shore is well supported and complies with California Rule of Court 9.40. Accordingly, the Verified Application is GRANTED in all respects. After this hearing, the Court will sign and file the Proposed Order that was filed with this Verified Application. SO ORDERED.
9:01 3			
9:01 4			

9:01 5			
9:00 <u>1</u>	25CV459214	<i>Philip Devera</i> <i>v.</i> <i>General Motors, LLC</i>	Order on Defendant's Demurrer to Plaintiff's First Amended Complaint <i>See Line 1 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 <u>2</u>	25CV480264	<i>Lee Drone</i> <i>v.</i> <i>Peter D. Bear, et al.</i>	Order on Defendants Allen S. Porter and Peter D. Bear's Motion to Quash Service of Summons for Lack of Personal Jurisdiction <i>See Line 2 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 <u>3</u>	23CV417705	<i>The Heights Residence, LLC</i> <i>v.</i> <i>Victoria Soboleva, et al.</i>	Order on Plaintiff's Motion For Summary Adjudication <i>See Line 3 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 <u>4</u>	23CV426612	<i>Bathena Dixon</i> <i>v.</i> <i>General Motors, LLC, et al.</i>	Order on Defendant's Motion for Summary Judgment or, in the alternative, Summary Adjudication <i>See Line 4 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.

9:00 5	22CV400450	<i>Norma Rojas</i> <i>v.</i> <i>Spread Your Wings, LLC, et al.</i>	Order on Plaintiff's Motion to deem the truth of all matters specified in RFAs admitted by Defendant, and for Sanctions <i>See Line 5 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 6	25CV477783	<i>Joseph Rostam</i> <i>v.</i> <i>Daniel A. Gonzales, et al.</i>	Order on Plaintiff's Amended Motion for Case Management Relief, to Compel Good-Faith Mediation Participation, and for Sanctions <i>See Line 6 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 7	24CV451323	<i>City of Sunnyvale</i> <i>v.</i> <i>Rosella Montoya Lopes, et al.</i>	Order on Gerald L. Nigro's Objection to Receiver's Status Report Dated November 26, 2025 As the Court dismissed without prejudice this receivership action on agreement of all parties (including Mr. Nigro, whom the Court first appointed as Successor in Interest to the deceased Defendant Lopes) at the July 8, 2026 Case Management Conference (<i>see</i> 07/08/2026 Minute Order), this Motion objecting to the November 26, 2026 Receiver's Report is VACATED as MOOT. SO ORDERED.

9:00 <u>8</u>	25CV456459	<i>Vimal Kohli</i> <i>v.</i> <i>Vishal Saxena, et al.</i>	Order on Plaintiff Vimal Kohli's Motion to Set Aside and Vacate the Court's Order Entered on November 26, 2025 See Line 8 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>9</u>	25CV478692	<i>Anthony Tomol</i> <i>v.</i> <i>Ford Motor Company, et al.</i>	Order on Defendant Hemborg Ford's Motion to Compel Arbitration and Stay Civil Action See Line 9 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>10</u>			
9:00 <u>11</u>			
9:00 <u>12</u>			
9:00 <u>13</u>			
9:00 <u>14</u>			
9:00 <u>15</u>			

Line 1

Case Name: *Philip Devera v. General Motors, LLC*

Case No.: 25CV459214

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant General Motors LLC (“GM” or “Defendant”) demurs under Code of Civil Procedure Section 430.10(e) to the First Amended Complaint (“FAC”) of Plaintiff Philip Devera (“Plaintiff”) on the grounds that:

- Plaintiff’s First, Second, and Third Causes of Action alleging violations of the Song-Beverly Consumer Warranty Act are time-barred due to the expiration of the statutes of limitation and repose;
- Plaintiff’s Fourth Cause of Action for Breach of Implied Warranty is time-barred by the four-year statute of limitations;
- Plaintiff cannot state his Fifth Cause of Action for Fraudulent Inducement-Concealment because it is time-barred by the three-year statute of limitations; and
- Plaintiff fails to sufficiently plead the essential elements of a fraud claim.

Notice of Demurrer (the “Demurrer”) at 1:3-12 (filed: Jan. 5, 2026)

Defendants’ Demurrer came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

According to the First Amended Complaint (“FAC”), on July 4, 2018, Plaintiff entered into a warranty contract with GM for a 2018 Chevrolet Volt, vehicle identification number 1G1RD6S50JU137160 (“Subject Vehicle”), which was manufactured and/or distributed by GM and sold by Capitol Chevrolet. The contract warranted the Subject Vehicle “bumper-to-bumper”, including but not limited to powertrain, emission, etc. (FAC ¶¶ 6-8)

Before Plaintiff’s purchase GM knew that vehicles equipped with the same 1.5L engine, as installed in the Subject Vehicle, suffered from one or more defects that could cause loss of power while driving, running rough, or engine misfires. (“Engine Defect”) GM acquired this knowledge through various sources of information, including but not limited to pre-production testing, consumer complaints, dealership repair orders, and testing conducted by GM in response to consumer complaints. However, GM and its

agents actively concealed the Engine Defect and failed to disclose it to the Plaintiff at the time of his purchase or thereafter. Had Plaintiff known the Subject Vehicle and its transmission were defective at the time of sale, they would not have purchased it. (FAC ¶¶ 73, 77, 80)

Plaintiff presented the Subject Vehicle to GM's authorized repair facility at least on two occasions during 2019 and 2020. GM's repair facility represented that the Subject Vehicle had been repaired, but Plaintiff continued to experience symptoms of defect. (FAC ¶¶ 10-14)

Plaintiff initiated this action by filing the Complaint on February 18, 2025, and amended his complaint in the FAC on December 4, 2025, alleging causes of action for (1) Violation of Civil Code section 1793.2, subdivision (d); (2) Violation of Civil Code section 1793.2, subdivision (b); (3) Violation of Civil Code section 1793.2, subdivision (a)(3); (4) Breach of the Implied Warranty of Merchantability; and (5) Fraudulent Inducement – Concealment.

II. Legal Standard on Demurrer

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

“A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 213-214.) In ruling on demurrers, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal. App. 4th 743, 751.) Evidentiary facts found in exhibits attached to complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

Under California law, even if a demurrer is sustained, leave to amend the complaint is routinely granted. “Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) “Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

III. Analysis of the Demurrer

A. First Through Third Causes of Action: Violation of the Song-Beverly Consumer Warranty Act

GM cites the statute of repose under Code of Civil Procedure section 871.21 in support of its contention that Plaintiff's first through third causes of action are time-barred. Code of Civil Procedure section 871.21 provides, in pertinent part:

“(b)... [A]n action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.

(c) The time periods prescribed in subdivision[] ... (b) shall be tolled as follows:

(1) As provided by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable.

(2) For the time the motor vehicle is out of service by reason of repair for any nonconformity.

(3) For the time period after a pre-suit notice is provided to the manufacturer in accordance with Section 871.24, which time period shall not exceed 60 days.”

(Code. Civ. Proc. § 871.21)

Code of Civil Procedure section 871.20 provides:

“(a) Notwithstanding any other law, this chapter applies to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.

(b) This chapter does not apply to service contract claims under Section 1794 of the Civil Code or any action seeking remedies that are not restitution or replacement of a motor vehicle.

(Code. Civ. Proc. § 871.20)

Code of Civil Procedure section 871.20 was added by AB 1755 with an effective date of January 1, 2025, and later amended by Senate Bill ("SB") No. 26 with an effective date of April 2, 2025. SB 26's revision to Section 871.20 added an opt-in provision to the new procedures by allowing car manufacturers to opt in by May 2, 2025, for the procedures to apply, otherwise the pre-amendment procedures would continue to apply. (See, Code Civ. Proc. §§ 871.29(a)-(c), 871.30.)

Therefore, for GM to rely on sections 871.20 or 871.21, it needs to have “elect[ed] to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles.” (Code Civ. Proc. §§ 871.29(b)) The FAC does not allege that GM made any such election. GM’s memorandum in support of its demurrer fails to mention section 871.29 or 871.30, much less argue and demonstrate that it made any such election. Nor does GM requests judicial notice of any election. In its reply, GM newly argues that it complied with the opt-in provision of the statutory framework on April 23, 2025. (Reply, at 2:3-5) However, again, this fact is neither alleged in the FAC nor was sought to be judicially noticed. Furthermore, GM’s reply assertion regarding its election to be governed by the chapter is only supported by an internet site; this is plainly insufficient on demurrer. (See *Zumbrun Law Firm v. California Legislature* (2008) 165 Cal.App.4th 1603, 1623, fn. 12 (request for judicial notice denied as the requesting party failed to raise it in the opening brief); see also *Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605, fn. 10 (denying request for judicial notice of facts found on internet sites as not a proper subject for judicial notice, stating that “[s]imply because information is on the Internet does not mean that it is not reasonably subject to dispute”).)

GM’s argument also fails under the old statute of limitations for Song-Beverly claims. “An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued. . . . (2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered”. (*Mexia v. Rinker Coat Co., Inc.*, (2009) 174 Cal.App.4th 1297, 1305-1306; citing Cal. U. Com. Code, § 2725, subs. (1), (2).)

The warranty period relating to an implied or express warranty accompanying a sale of consumer goods is tolled for the period from when the buyer delivers nonconforming goods to the manufacturer or seller for warranty repairs or service or notifies the manufacturer or seller of the nonconformity, until the goods are returned to the buyer or the buyer is notified that the goods are repaired. (Civ. Code, § 1795.6.) Plaintiff alleges he discovered GM's wrongful conduct shortly before filing the complaint, as the Subject Vehicle continued to exhibit symptoms of defects following GM’s unsuccessful attempts to repair them. As an example, Plaintiff presents GM’s unsuccessful repair attempts on October 30, 2019, and January 14, 2020, alleging this is not an exhaustive repair history as discovery is underway. (FAC ¶¶ 10-14, 40.) These allegations are sufficient to show the statutory limitation was tolled, at the minimum, until January 14, 2020. However, the FAC does not affirmatively show the action is time-barred. Where Defendant demurs on the affirmative defense that the action is time-barred, the defect must clearly and affirmatively appear on the face of the complaint and/or matters subject to judicial notice; it is not enough that the complaint shows that the action may be barred. (See, *Committee for Sound Water & Land Development v. City of Seaside* (2022) 79 Cal.App.5th 389, 400.)

Lastly, section 871.20 plainly states that it applies to a violation of section 1793.2 (b) or (d); it does not state that it applies to a violation of section 1793.2, subdivision (a)(3); as alleged in Plaintiff's third cause of action. At this juncture, it is unnecessary for the Court to further analyze and address the parties' arguments regarding retroactive application of section 871.21 and equitable tolling of the statutory limitation.

Accordingly, GM's Demurrer to the First through Third Causes of Action is **OVERRULED**.

B. Fourth Cause of Action – Breach of the Implied Warranty of Merchantability

GM contends that Plaintiff's fourth cause of action for breach of the implied warranty of merchantability is time-barred by the four-year statute of limitations since the complaint was filed more than four years after the vehicle was purchased and delivered to Plaintiff.

As noted above, California Uniform Commercial Code's (UCC) four-year statute of limitations for breaches of warranty applies to Song-Beverly breach of express warranty claims and breach of implied warranty claims. (Com. Code, section 2725(1); *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 215.) Under that statute, a cause of action for breach of warranty accrues, at the earliest, upon tender of delivery. However, where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance, the cause of action accrues when the breach is or should have been discovered. (See . (Cal. U. Com. Code, § 2725, subds. (1), (2).)

While the Court can infer the Subject Vehicle was delivered to Plaintiff on the sale date, the FAC lacks any factual allegations in this regard. As noted above, where Defendant demurs on the affirmative defense that the action is time-barred, the defect must clearly and affirmatively appear on the face of the complaint and/or matters subject to judicial notice; it is not enough that the complaint shows that the action may be barred. (See, *Committee for Sound Water & Land Development v. City of Seaside* (2022) 79 Cal.App.5th 389, 400.)

Accordingly, GM's Demurrer to the Fourth Cause of Action is **OVERRULED**.

C. Fifth Cause of Action – Fraudulent Inducement—Concealment

The elements of a cause of action for fraudulent inducement-concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the

plaintiff sustained damage. (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348.)

GM contends that Plaintiff's claim for fraudulent concealment fails because it is not only time-barred, but also lacks the necessary factual specificity. More specifically, GM contends that Plaintiff fails to allege a direct transactional relationship that would give rise to a legal duty to disclose. (Demurrer at 12:18-17:9) The Court is unpersuaded. First, claims for fraudulent inducement based on concealment are subject to a three-year statute of limitations. (Code Civ. Proc., § 338(d).) GM contends Plaintiff's claim accrued on July 4, 2018, when the Subject Vehicle was purchased and the express warranty went into effect. Therefore the latest filing date for the complaint was July 4, 2021. However, a fraud claim "is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Code Civ. Proc., § 338, subd.(d).)

Plaintiff alleges that he discovered GM's wrongful conduct shortly before filing his complaint. (FAC ¶ 33) Nothing in the FAC specifies a date when Plaintiff discovered the alleged fraud. As stated above, a demurrer based on the statute of limitations is only permissible when the grounds for the defense are disclosed on the face of the complaint or from matters judicially noticed. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746.) In other words, the dates alleged in the complaint must show the action is barred by the applicable statute of limitations and the running of the statute must appear clearly and affirmatively from the alleged dates. Here, the FAC does not show *that*. Accordingly, GM's demurrer on this ground is OVERRULED.

Second, "[a] duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as the plaintiff's fiduciary or is in some other confidential relationship with the plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to the defendant, and the defendant knows those facts are not known or reasonably discoverable by the plaintiff (*i.e.*, exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (*i.e.* partial concealment); or (5) the defendant actively conceals discovery of material fact from the plaintiff (*i.e.*, active concealment). Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as "between seller and buyer, ..., or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances. Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large." (*Rattagan v. Uber Techs., Inc.* (2024) 17 Cal. 5th 1, 40, internal citations and quotes are omitted.) All the same, "[a] relationship between the parties is present if there is some sort of transaction between the parties." (*Hoffman v. 162 N. Wolfe LLC*, (2014) 228 Cal. App. 4th 1178, 1187, internal citation and quotes omitted)

Here, Plaintiff alleges that he entered into an express warranty agreement with GM on July 4, 2018. The Court must, in the procedural posture of resolving this demurrer, construe all inferences in the FAC in the light most favorable to Plaintiff. As such, Plaintiff

has sufficiently alleged a transactional relationship with GM that gives rise to a duty to disclose. Plaintiff has also alleged sufficient facts showing GM's exclusive knowledge of the Engine Defect, which were not reasonably discoverable by Plaintiff. So GM's argument for lack of duty to disclose fails on either basis.

Accordingly, GM's Demurrer to the Fifth Cause of Action is **OVERRULED**.

IV. Conclusion & Order

GM's Demurrer to the First, Second, Third, Fourth, and Fifth Causes of Action is **OVERRULED** in all respects.

SO ORDERED.

Date: July 15, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 2

Case Name: *Lee Drone v. Peter D. Bear, et al.*

Case No.: 25CV480264

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants Allen S. Porter and Peter D. Bear (collectively, “Defendants”) specially appear and move to quash service of the Summons on the ground that the Court lacks personal jurisdiction over them under Code of Civil Procedure Section 418.10. Notice of Motion (the “Motion”) at 1:24-2:2 (filed: Feb 6, 2026).

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

According to the Complaint, on November 1, 2021, Plaintiff Lee Drone (“Plaintiff”) and Ian Goodman, as co-owners, purchased the real property located at 1430 Ellen Avenue, Madison, Wisconsin (“Wisconsin Property”). Dane County Title Company acted as the settlement agent for the transaction (Complaint ¶¶ 1, 2)

Some dispute arose between Plaintiff and Ian Goodman. As a result, Ian Goodman, through his attorney Peter Bear, sent various email communications to Plaintiff regarding their co-ownership agreement, offer to purchase Plaintiff’s share, Goodman’s petition for harassment injunction, and service of the restraining order. Peter Bear and Plaintiff exchanged email communications pertaining to the legal proceedings in Wisconsin, discovery, settlement terms and proposals. Some of the email communications contained production of Plaintiff’s loan application without redacting Plaintiff’s private information, and Goodman’s petition, which contained false statements. (Complaint ¶¶ 2-10, 26-107).

As a result of Defendants’ allegedly wrongful acts and communications, Plaintiff was unlawfully excluded from use and disposition of the Wisconsin Property; has incurred litigation costs, travel costs, loss of work time; has suffered reputational harm and emotional distress. (Complaint ¶¶ 197-198)

Plaintiff initiated this action by filing the Complaint on November 21, 2025, in which Plaintiff brings the following 84 Causes of Action:

Count 1 - Negligent Mishandling of Property-Related Financial Records; Breach of custodial duty as settlement agent

Count 2- Negligent Misrepresentation; Failure to preserve accuracy in closing

documentation

Count 3 - Intentional Interference with Property Rights; Attorney-assisted coercive real-estate proposal used to pressure surrender of co ownership interest

Count 4- Fraudulent Misrepresentation; Misleading use of attorney signature block to induce reliance

Count 5 - Economic Duress; Embedding legal threats. deadlines, and financial pressure to coerce property transfer

Count 6- Unlawful Restraint on Speech and Conduct; Embedding lifetime no-contact and behavioral restrictions in attorney-shaped proposal

Count 7 - Constructive Fraud; Exploiting implied attorney expertise to conceal material risks and liabilities

Count 8- Coerced Waiver of Legal Rights; Embedding unlawful waivers of communication and legal rights inside coercive proposal

Count 9 - Fraudulent Misrepresentation; False assurances regarding financial terms. legal effect, and liability consequences

Count 10 - Intentional Interference with Contractual Relations; Attorney-driven interference with existing co-ownership and contractual obligations

Count 11- Abuse of Process under California Common Law; Retaliatory use of judicial process after refusal to surrender property

Count 12 - Negligent Misrepresentation; Use of false Wisconsin address to obtain defective service and jurisdiction

Count 13 – Defamation; Fabricated claim of access to weapons to influence judicial process

Count 14 - Concealment of Material Facts; Failure to identify the subject property in official service record;

Count 15 - Intentional Interference with Property Rights; Coercive transmission of renewed proposal and affidavit through attorney intermediary

Count 16 - Fraudulent Misrepresentation of Judicial Status; Misuse of void temporary restraining order to coerce property transfer

Count 17 - Economic Duress; Use of pending and prospective judicial filings as leverage for property transfer

Count 18 - Intentional Interference with Property Rights; Re-issuance of purchase offer with behavioral restrictions and deadline pressure

Count 19 - Misrepresentation of Service by Publication and Default Status; False representation of completed service used to induce agreement

Count 20 - Economic Duress; Quid-pro-quo settlement linked to anticipated court success

Count 21- Intentional Interference with Property Rights; Use of electronic communication to coerce property transfer outside judicial process

Count 22 – Defamation per se; Use of professional authority to impair liberty and property interests

Count 23 - Abuse of Process; Coercive use of litigation and publicity threats to obtain property

Count 24 - Economic Duress; Economic coercion through quid-pro-quo agreement to withhold legal action ad

Count 25 - Fraudulent Misrepresentation; Use of asserted judicial authority to pressure settlement

Count 26 - Abuse of Process; Framing separate legal and private issues to extend leverage
Count 27 - Constructive Fraud; Failure to include lender release or mortgage protection
Count 28 - Civil Conspiracy to Commit Fraud; Joint action to divest property interest without due process
Count 29 - Abuse of Process; Use of judicial order as instrument of private coercion
Count 30 - Fraudulent Concealment; Presentation of facially neutral document masking threats
Count 31 - Economic Duress; Attorney's direct issuance of coercive proposal through misuse of his professional role
Count 32 - Negligent Entrustment of Confidential Financial Information; Improper upstream disclosure of sensitive lender-file materials to an unauthorized attorney
Count 33 - Negligent Mishandling of Records; Failure to safeguard co-owned financial documents prior to transmission to third parties
Count 34 - Invasion of Privacy (Informational Privacy); Disclosure of Plaintiff's lender-file document by co-owner outside lawful process
Count 35 - Causation of Public Disclosure of Private Facts; Upstream financial-document disclosure resulting in downstream public exposure
Count 36 - Abuse of Process; Failure to provide corroborating materials referenced in sworn affidavit
Count 37 - Abuse of Process; Withholding chain-of-custody information for recordings referenced in sworn filings
Count 38 - Abuse of Process; Procedural deprivation through unserved and incomplete filing
Count 39 - Slander of Title; Misrepresentation of property interest to diminish recorded title
Count 40 - Defamation per se; Insertion of irrelevant personal attacks to bias judicial proceeding
Count 41 - Abuse of Process; Application of waiver theory to nullify jurisdictional protections
Count 42 - Abuse of Process; Evasion of lawful service requirements through unauthorized delegation
Count 43 - Abuse of Process; Failure to correct co-counsel's unlawful service conditions
Count 44 - Abuse of Process; Evasion of lawful service requirements by providing invalid address
Count 45 - Abuse of Process; Unlawful conditioning of procedural rights on non-statutory terms
Count 46 - Abuse of Process; Expansion of unauthorized service demands across multiple proceedings
Count 47 - Civil Conspiracy to Commit Abuse of Process; Coordinated evasion and obstruction of lawful service between co-counsel
Count 48 - Abuse of Process; Failure to ensure lawful service depriving notice and participation
Count 49 - Abuse of Process; Neglect of mandatory service obligations resulting in denial of notice

Count 50 - Abuse of Process; Improper electronic service of initiating pleadings without authorization

Count 51 - Abuse of Process; Tacit participation in unauthorized electronic service of pleadings

Count 52 - Abuse of Process; Improper timing and electronic delivery of hearing evidence without adequate notice

Count 53 - Public Disclosure of Private Facts; Use and circulation of outdated and protected correspondence to influence judicial proceedings

Count 54 - Civil Conspiracy to Commit Abuse of Process; Joint preparation and submission of unauthorized hearing exhibits

Count 55 - Intentional Misrepresentation Regarding Property Ownership; Initial misrepresentation establishing ongoing ownership-pressure scheme

Count 56 - Unfair Business Practices (Pattern of Fraudulent Conduct); Linking renewed proposal, affidavit, and threats to earlier fraudulent acts

Count 57 - Unfair Business Practices (Use of judicial Process to Coerce Property Transfer); Integration of proposal, petition, and service filings into continuing pattern of wrongful acts

Count 58 - Civil Conspiracy to Commit Fraud; Affidavit used as key act supporting ongoing fraudulent scheme

Count 59 - Unfair Business Practices (Pattern of Fraudulent and Coercive Conduct); Incorporating December 19 email and offer as additional acts in ongoing scheme

Count 60 - Abuse of Process; Use of belief-based affidavit and evidence refusal as continuing acts of obstruction

Count 61 - Unfair Business Practices (Evidence Obstruction and Coercive Settlement); Use of evidence refusal, belief-based affidavit, and coercive settlement as continuing acts

Count 62 - Public Disclosure of Private Facts; Integration of January 8, 2024 leak into continuing pattern of wrongful disclosure

Count 63 - Invasion of Privacy (Informational Privacy); Integration of Ian Goodman's disclosure into ongoing pattern of privacy invasion and coercive conduct

Count 64 - Civil Conspiracy to Commit Abuse of Process and Fraud; Obstruction, threats, and false-record email cluster as related acts in ongoing scheme

Count 65 - Abuse of Process; Defective filing, false statements, and jurisdictional manipulation as acts of misuse of process

Count 66 - Abuse of Process; Use of service obstruction as continuing acts of misuse of process

Count 67 - Economic Duress and Coercive Use of Litigation Threats; Use of threatened litigation and fear to obtain property interests

Count 68 - Abuse of Process; Advocate-as-witness misconduct and fabrication of evidence

Count 69 - Abuse of Process; Use of interstate email to circumvent lawful service and advance injunction proceedings

Count 70 - Invasion of Privacy (Informational Privacy); Unauthorized acquisition and initial disclosure of personally identifiable and financial data

Count 71 - Invasion of Privacy (Informational Privacy); Unauthorized use of

confidential financial records outside any lawful process
 Count 72 - Abuse of Process; Withholding evidence and altering records to impair defense
 Count 73 - Abuse of Process; Interstate email scheme to misrepresent service and gain procedural advantage
 Count 74 - Economic Duress through Coercive Settlement Terms; Wrongful use of fear and litigation threats to obtain property rights
 Count 75 - Economic Duress through Coordinated Litigation and Reputation Threats; Coercive litigation threats and property-surrender demands in coordinated package
 Count 76 - Economic Duress via Threatened Litigation and Reputational Harm; Fear of litigation and reputation used as economic coercion
 Count 77- Economic Duress through Injunction-Conditioned Property Demands; Pattern of injunction-conditioned property demands as ongoing course of economic duress
 Count 78 - Invasion of Privacy (Informational Privacy); Interstate electronic release of confidential loan-application data
 Count 79 - Intentional Misrepresentation (Fraudulent Inducement); Use of interstate email for coercive property offers and fraudulent inducement
 Count 80 - Abuse of Process; Suppression of recordings and use of evidence requests for settlement pressure
 Count 81 - Abuse of Process and Coercive Interference with Petition Rights; Conditioning property relief on silence and withdrawal of participation
 Count 82 - Abuse of Process (False Affidavit Use); Submission of affidavit containing belief-based, materially false statements
 Count 83 - Negligent Handling of Confidential Financial Information; Negligent custodial handling enabling unauthorized disclosure of loan records
 Count 84 - Civil Conspiracy to Commit Fraud and Abuse of Process; Coordinated scheme using misrepresentation and misuse of process to impair property rights.

Complaint at pp. 38-82.

II. Legal Standard on Motion to Quash

A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow" may move "to quash service of summons on the ground of lack of jurisdiction of the court over him or her" that results from lack of proper service. (Code. Civ. Proc. § 418.10(a)(1). A defendant has 30 days after the service of the summons to file a responsive pleading. (Code. Civ. Proc. § 412.20(a)(3).) "Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant." (*AO Alfa-Bank v. Yakovlev* (2018) 21Cal.App.5th 189, 202 [internal quotations marks and citation omitted].) "To establish personal jurisdiction, compliance with statutory procedures for service of process is essential." (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371.) Defendant's knowledge of the action does not dispense with statutory requirements for service of summons. (*Kappel v. Bartlett* (1988) 200 Cal.App.3d 1457, 1466.)

When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. (See, *Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd.* (2019) 31 Cal.App.5th 543, 553.) “The plaintiff must do more than merely allege jurisdictional facts. It must present evidence sufficient to justify a finding that California may properly exercise jurisdiction over the defendant.” (*In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 110.) “If the plaintiff meets this initial burden, then the defendant has the burden of demonstrating that the exercise of jurisdiction would be unreasonable.” (*Jayone Foods, supra*, 31 Cal.App.5th at p. 553.)

III. Analysis of the Motion to Quash

Specially-appearing Defendants contend the Court lacks personal jurisdiction over them because (1) they have not purposefully availed themselves of California, (2) Plaintiff’s claims do not arise out of California contacts, and (3) exercising jurisdiction would be unreasonable and inconsistent with fair play and substantial justice. (Motion at 6:5-6, 7:7-8, 7:20-21) More specifically, Defendants argue that the subject communications “received in California were incidental to Wisconsin-centered litigation and a Wisconsin property/title dispute and were not an attempt to exploit, target, or conduct activities within California. Plaintiff’s unilateral decision to be in California when receiving litigation-related communications does not transform Wisconsin centered conduct into California-directed activity.” (Motion at 6:21-26)

In Opposition, Plaintiff argues that specific jurisdiction exists because Defendants purposefully directed and transmitted their communications/materials that associated with the Wisconsin dispute to him in California. Those communications and materials included emails, affidavits, settlement-related communications, injunction-related communications, demands, and disclosures. (Opposition at 3:5-13)

To comport with federal and state due process, California may only exercise jurisdiction when a defendant has sufficient minimum contacts with the state to satisfy traditional notions of fair play and substantial justice. Under the minimum contacts test, courts examine the quality and nature of a defendant’s action to determine whether requiring him/her to submit to jurisdiction in California is reasonable and fair. (See, *Zehia v. Superior Court* (2020) 45 Cal.App.5th 543, 551–552.

A court may exercise specific jurisdiction over a nonresident defendant only if: (1) the nonresident defendant has purposefully availed himself of forum benefits; (2) the controversy relates to, or arises out of, the nonresident defendant’s contacts with the forum; and (3) the exercise of jurisdiction comports with fair play and substantial justice. The specific jurisdiction analysis focuses on the relationship among the defendant, the forum, and the litigation. (*Ibid.*)

“The purposeful availment inquiry ... focuses on the defendant’s intentionality. This prong is only satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court’s jurisdiction based on his contacts with the forum. Thus, the

purposeful availment requirement ensures that a defendant will not be haled into a jurisdiction solely as a result of random, fortuitous, or attenuated contacts, or of the unilateral activity of another party or a third person. When a [defendant] purposefully avails itself of the privilege of conducting activities within the forum State, it has clear notice that it is subject to suit there, and can act to alleviate the risk of burdensome litigation by procuring insurance, passing the expected costs on to customers, or, if the risks are too great, severing its connection with the State.” (*Pavlovich v. Superior Court*, (2002) 29 Cal. 4th 262, 269; internal citations and quotes omitted)

Courts apply the “effects test” to determine purposeful availment not only in defamation context but also in other intentional torts, including business torts. (See *IMO Industries, Inc. v. Kiekert AG* (3d Cir. 1998) 155 F.3d 254, 259-260, 261; *Far West Capital, Inc. v. Towne* (10th Cir. 1995) 46 F.3d 1071, 1077.) Under this test, intentional conduct occurring elsewhere may give rise to jurisdiction in California where it is calculated to cause injury in California. The defendant must expressly aim or target his conduct toward California, with the knowledge that his intentional conduct would cause harm in the forum. (See, *Pavlovich, supra*, 29 Cal. 4th at pp. 271–273; *Calder v. Jones* 465 U.S. 783, 788-790.) California courts emphasize that the analysis must focus on the defendant's contacts with the forum state itself, and not merely the defendant's contacts with a person who resides there. The proper inquiry is whether the defendants’ conduct connects them to the forum in a meaningful way. (See, *Burdick v. Superior Court*, (2015) 233 Cal. App. 4th 8, 13.)

Here, the Complaint alleges various and sundry torts arising from the content of email communications between the parties. The communications pertained to Ian Goodman’s application for a restraining order against Plaintiff, service of the restraining order via publication, title and possessory dispute over the Wisconsin Property, settlement proposals and terms, related evidence supporting the restraining order, related evidence supporting the title dispute, Wisconsin court docket/hearing/filings. Communications predominantly occurred between Plaintiff and Peter Bear, who represented Ian Goodman. Plaintiff himself sent emails to Mr. Bear addressing the legal proceedings and requesting information, documents, and evidence. (Complaint ¶¶ 2-10, 26-107)

Electronic communications, including emails and telephone calls, may establish the requisite minimum contacts if a defendant “reaches back” into California to create a “continuing obligation” or to conduct business with a resident. However, sending communications about legal proceedings occurring in a foreign state generally lacks the necessary California focus. Simply transmitting communications to a California resident with knowledge of their residency is insufficient to satisfy the express aiming requirement if the subject matter of the communication is anchored in another forum. If the emails merely transmit information regarding foreign legal proceedings, they constitute contact with the Plaintiff rather than contact purposefully directed at the forum state itself, making the contact too random, fortuitous, or attenuated to justify personal jurisdiction. Plaintiff submits his Declaration in support of his Opposition. Plaintiff declares:

- In 2024, he filed a Wisconsin partition action concerning the Wisconsin Property,

Case No. 2024CV000216, which remains pending. (Decl. ¶ 4)

- In 2025, he filed Wisconsin actions 2025CV001149 and 2025CV001521, which asserted certain non-property claims arising from related underlying events. (Decl. ¶ 6)
- He, thereafter, elected to pursue certain related non-property claims in California, where he has resided and worked since 2019. (Decl. ¶ 8)
- Prior to purchasing the Wisconsin Property, he and Ian Goodman exchanged emails pertaining to their co-ownership of the Property, loan application, appraisal, financing, etc. (Decl. ¶¶ 10-13)
- During relevant times, he received communications and materials concerning the disputes and matters referenced in the complaint. The communications included emails, litigation-related communications, proposals, settlement-related communications, affidavits, demands, and related materials concerning the disputes. (Decl. ¶¶ 15-17)
- He received email communications from Defendants concerning the disputes and matters referenced in the complaint. These communications included emails, settlement-related communications, affidavits, injunction-related communications, demands, sworn affidavits, unredacted confidential financial documents, and other materials concerning the disputes and matters referenced in the Complaint. (Decl. ¶¶ 26-27)

Declaration of Lee Drone in Support of Plaintiff's Opposition to Defendants' Motion to Quash (filed: June 3, 2026).

But neither Plaintiff's Declaration nor his verified Complaint show that Defendants' out-of-state communications were expressly aimed or intentionally targeted at California, rather than at him personally. On this record, Plaintiff fails to meet his burden of demonstrating facts that justify the exercise of jurisdiction. Defendants' out-of-state email communications regarding the Wisconsin legal proceedings sent to Plaintiff (a California resident) do not justify the exercise of personal jurisdiction over Defendants in California Defendants because their focus is on Plaintiff rather than the forum state of California.

IV. Conclusion & Order

Accordingly, Defendants' Motion to Quash Service of Summons for lack of personal jurisdiction over them is **GRANTED**.

SO ORDERED.

Date: July 15, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 3

Case Name: *The Heights Residence, LLC v. Victoria Soboleva, et al.*

Case No.: 23CV417705

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff The Heights Residence, LLC (“Plaintiff” or “The Heights”) moves for Summary Adjudication under Code of Civil Procedure Section 437c(f) against Defendants Victoria Soboleva (“Soboleva”), Aureus Finance Group, LLC (“Aureus”), U.S. Bank Trust National Association (“U.S. Bank”) and FCI Lender Services, Inc. (“FCI”) (collectively, “Defendants”) of the following issues:

Issue No. 1: The Heights’s Third Cause of Action for Declaratory Relief should be summarily adjudicated in Height’s favor against Defendants because there is no triable issue of material fact and The Heights is entitled to Judgment as a matter of law.

Issue No. 2: The Heights’s Fourth Cause of Action for Quiet Title should be summarily adjudicated in The Heights’s favor against Defendants because there is no triable issue of material fact and The Heights is entitled to Judgment as a matter of law.

Notice of Motion (the “Motion”) at 2:4-14 (filed: Nov. 26, 2025).

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

On June 14, 2023, Plaintiff The Heights Residence, LLC (“The Heights”) filed this civil action against the following Defendants: Victoria Soboleva (“Soboleva”), Aureus Finance Group, LLC (“Aureus”), Fidelity National Title Insurance Company (“Fidelity”), California TD Specialists (“California TD”), U.S. Bank Trust National Association (“US Bank”), FCI Lender Services, Inc. (“FCI”), and Mark Spiller (“Spiller”) (collectively, “Defendants”).

According to the First Amended Complaint (“FAC”), The Heights is the owner of real property at 2051 Waverly St., Palo Alto, CA (“Subject Property”). (FAC, ¶¶ 1, 14, Exs. A, C.) Paul Roberts (“Roberts”) is the only manager or authorized agent of The Heights. (*Id.* at ¶ 13, Ex. B.) Spiller and Soboleva held themselves out to be the owner of the Subject Property, providing fraudulent proof of ownership, and made inquiries to Aureus about a Cash Out Refinance, despite them having no affiliation with The Heights. (*Id.* at ¶¶ 15, 17.)

In emails with Aureus, Spiller indicated that he and Soboleva were interested in a \$6.7 million cash-out refinance loan and that the Subject Property was an investment property. (*Id.* at ¶ 16.) Soboleva provided information showing accounts worth less than \$600,000 despite providing financial statements stating her assets totaled nearly \$24 million. (*Id.* at ¶ 17.) Despite the inconsistencies and the loan being rejected several times, Aureus employees pushed the loan through in early March 2022. (*Ibid.*) After the loan money was disbursed, Aureus was unable to contact Spiller and Soboleva and concluded that the transaction had been fraudulent and that the borrower was not real. (*Id.* at ¶ 18.)

Thereafter, Edward, a family friend of Soboleva, called Aureus to report the fraud and indicated Soboleva had fled to Russia. (FAC, ¶ 19.) In June 2022, FCI received a similar call from Edward, and Aureus was notified of this call. (*Id.* at ¶ 20.) Despite this information, Aureus and FCI proceeded with collection processes as usual. (*Ibid.*) On May 22, 2023, The Heights received a Notice of Default and Election to Sell Under Deed of Trust (“the Notice”) from TD Specialists, a debt collector retained by US Bank, regarding an alleged default by Plaintiff on a purported deed of trust (“Fraudulent DOT”) for the Subject Property. (FAC, ¶ 21.) The Fraudulent DOT secured a principal loan of \$5,250,000, reflecting The Heights as the borrower, Aureus as beneficiary-lender, and Fidelity as trustee. (*Id.* at ¶ 22.) The Fraudulent DOT was signed by Soboleva as managing member of The Heights. (*Id.* at ¶ 23.) The Heights believes Aureus sold the loan to US Bank who was then appointed as the new trustee of the Fraudulent DOT. (*Id.* at ¶ 24.) On May 24, 2023, Roberts filed a real estate fraud complaint form with the Santa Clara County District Attorney’s Office, Real Estate Fraud unit and sent the form to TD Specialists and FCI. (FAC, ¶ 26, Ex. D.)

On April 12, 2024, The Heights filed the operative FAC asserting claims for:

- 1) Slander of title [against Soboleva, Spiller, Aureus, and FCI];
- 2) Violation of Penal Code section 496 [against Soboleva and Spiller];
- 3) Declaratory relief [against Defendants]; and
- 4) Quiet title [against Soboleva, Aureus, Fidelity, TD Specialists, US Bank, and FCI].

On November 26, 2025, The Heights filed this Motion for Summary Adjudication of its Third Cause of Action for Declaratory Relief and Fourth Cause of Action for Quiet Title. US Bank opposes the Motion, and The Heights filed a Reply.

I. Legal Standard

A motion for summary adjudication on a cause of action is subject to the same rules and procedures as a summary judgment motion. (*Lunardi v. Great-West Life Assurance Co.* (1995) 37 Cal. App. 4th 807, 819.) So a motion for summary adjudication “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) The “party moving for summary [adjudication] judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact[.]” (*Aguilar v. Atlantic Richfield*

Co. (2001) 25 Cal.4th 826, 850 (*Aguilar*).) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

If the moving party makes the necessary initial showing, the burden of production shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at p. 850.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Ibid.*) “[I]f the court concludes that the [opposing party’s] evidence or inferences raise a triable issue of material fact, it must conclude its consideration and deny the [moving party’s] motion.” (*Id.* at p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Aguilar, supra*, 25 Cal.4th at p. 844 [internal quotations omitted].) The moving party’s evidence is strictly construed, while the opposing party’s evidence is liberally construed. (*Id.* at p. 843.)

II. Request for Judicial Notice

In connection with its Motion, The Heights seeks judicial notice of US Bank’s Cross-Complaint filed on July 23, 2025 (Ex. 17). While Exhibit 17 is not the operative pleading, The Heights refers to the Cross-Complaint in asserting that US Bank now seeks to contradict judicial admissions of fact. Under California law, the Court may take judicial notice of the existence of this pleading but not of the truth of its contents. (See *Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 [truth of contents of court records cannot be judicially noticed].) Accordingly, this request is **GRANTED** as to the pleading’s existence and filing date but not the truth of its contents or the contents of any attached exhibit.

In its Reply brief, The Heights requests judicial notice of US Bank’s Answer to the FAC. The request is **DENIED** because the Court finds that this Answer is not necessary, helpful, or relevant for the Court to decide this Motion. (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [declining to take judicial notice of materials not “necessary, helpful, or relevant”].)

III. Objections

The Heights has filed objections to US Bank’s evidence. In the exercise of its broad discretion, the Court decides not to rule Objections 1, 3, and 4 now because these objections are not material to the Court deciding this Motion at this time. (See Code Civ. Proc., § 437c(q) [court need only rule on material objections to evidence and evidentiary objections not ruled on are preserved for appellate review].)

Regarding Objection 2, Objection 2 is **OVERRULED** on the merits.

IV. Analysis of the Motion on the Declaratory Relief and Quiet Title Causes of Action

The Heights's Third Cause of Action for Declaratory Relief seeks a declaration that the Fraudulent DOT is void, voidable, and/or invalid to resolve all of its controversies and seeks a cancellation of the Fraudulent DOT pursuant to Civil Code section 3412 on the basis that the instrument, if left outstanding, is likely to cause serious injury to it. (FAC, ¶¶ 45-46.)

The Height's Fourth Cause of Action for Quiet Title seeks to quiet title in and to the Subject Property against all adverse claims by Defendants. (*Id.* at ¶¶ 48-52.)

In support of its Motion, The Heights contends that the declaratory relief claim is incidental to the claim for quiet title "such that the action asserts only one claim." (The Heights's Motion for Summary Judgment ("Motion"), p. 7:19-25, quoting *Deutsche Bank Nat'l Tr. Co. v. Pyle* (2017) 13 Cal. App. 5th 513, 523 (*Deutsche*)).) California courts hold that a claim for quiet title and a claim to have an instrument in the property declared void comprise a single cause of action. (*Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, 292-293 (*Weeden*); *Parsons v. Weis* (1904) 144 Cal. 410, 414; *Beronio v. Ventura County Lumber Co.* (1900) 129 Cal. 232, 235 [stating also "a plaintiff may frequently be entitled to several species of remedy for the enforcement of a single right"]; *Deutsche, supra*, at p. 523.)

In a nutshell, The Height's argument is that because the Fraudulent DOT is void, no property was conveyed. And because no property was conveyed, Defendants cannot claim interest in the Subject Property. Hence, The Heights is entitled to have title quieted as a matter of law now. (Motion, p. 10:1-8.)

A. The Heights's Burden on this Motion

The Heights brings its Declaratory Relief and Quiet Title claims pursuant to Civil Code section 3412. A claim for cancellation of written instrument is an equitable claim that is codified in section 3412. Section 3412 states: "A written instrument, in respect to which there is a reasonable apprehension that if left outstanding it may cause serious injury to a person against whom it is void or voidable, may, upon his application, be so adjudged, and ordered to be delivered up or canceled." (Civ. Code, § 3412.) This claim allows a plaintiff to obtain cancellation of an instrument that creates a cloud on the plaintiff's title. "Such a claim, by its definition, does not seek to hold the defendant liable for tort damages. The [plaintiff is] seeking to quiet title and also to have the instrument under which [defendants] claims an interest in the property declared void; these comprise a single cause of action." (*Weeden, supra*, 70 Cal.App.5th at pp. 292– 293.)

The Heights asserts that it is entitled to an order quieting title if the evidence establishes that its claimed interest in the Subject Property is superior to Defendants' claimed interest. (Motion, p. 7:26-28.) The Heights correctly asserts that it must proffer evidence that 1) the instrument is void or voidable, and 2) there is reasonable apprehension of serious injury. (*U.S. Bank Nat'l Ass'n v. Naifeh* (2016) 1 Cal.App.5th 767,

778 (*U.S. Bank*), citing Civ. Code § 3412 and *Turner v. Turner* (1959) 167 Cal.App.2d 636, 641 (*Turner*).)

1. Void or Voidable Deed

“A deed is void if the grantor’s signature is forged or if the grantor is unaware of the nature of what he or she is signing. A voidable deed, on the other hand, is one where the grantor is aware of what he or she is executing, but has been induced to do so through fraudulent misrepresentations.” (*Schiavon v. Arnaudo Bros.* (2000) 84 Cal.App.4th 374, 378 (*Schiavon*) [internal citations omitted].)

In support of the assertion that the Fraudulent DOT is void, The Heights asserts that Soboleva purported to sign it on behalf of The Heights despite Roberts being the only manager, officer, or authorized agent of The Heights since it was formed in 2013 and having no knowledge of Soboleva. (UMF Nos. 4, 9-11, 14 [Roberts’s Decl. ¶¶ 4, 9, Ex. 2; Avazian Decl., Ex. 9 [Fraudulent DOT]].) The Heights’s operating agreement indicates that it “has one Manager, whose name and address are as follows: Paul G. Roberts . . .” (Roberts’s Decl., Ex. 2.) The Fraudulent DOT shows that Soboleva signed the deed as “Managing Member of The Heights Residence LLC” on March 9, 2022 (Avazian Decl., Ex. 9, pp. 21-22.)

Further, the operating agreement that Soboleva presented to Aureus lists her as the “sole member” of The Heights. (Avazian Decl., Ex. 8.) Thus, The Heights proffers sufficient evidence that Soboleva forged the authority to execute the Fraudulent DOT as managing member of The Heights, despite not being the managing member. (See *Schiavon, supra*, Cal.App.4th at p. 381 [“A forgery is a “writing which falsely purports to be the writing of another,” and is executed with the intent to defraud.”].)

Accordingly, the Court finds that The Heights has established the first element of its section 3412 claim – that the Fraudulent DOT is void.

2. Reasonable Apprehension of Injury

The injury requirement for cancellation of an instrument is “a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of one’s position.” (*U.S. Bank, supra*, 1 Cal.App.5th at p. 778.) The injury may be the alteration of one’s position to its prejudice. “It is not necessary to allege or prove any pecuniary loss so long as the record indicates there was injury or prejudice resulting from the fraud. It is sufficient to show that the plaintiff is in a worse position than [it] otherwise would have been.” (*Turner, supra*, 167 Cal.App.2d at p. 641.)

Here, The Heights asserts it had no knowledge of the Fraudulent DOT until it received the Notice (Roberts Decl., ¶ 8) and now it seeks to regain rightful, unencumbered title to the Subject Property (Motion, p. 6:25-28.) The false encumbering of The Height’s Subject Property with an outstanding amount owed, over \$5.2 million, that it never agreed to is sufficient to show injury. T

Accordingly, the Court finds that The Heights established the second element of its section 3412 claim.

So The Heights meets its burden as the party moving for Summary Adjudication on the Third Cause of Action and the Fourth Cause of Action.

B. US Bank's Burden in Opposing this Motion

In Opposition, US Bank does not dispute that Roberts was the sole manager of The Heights and that he has the exclusive right to control and manage the business. (Opposition, p. 11:4-15.) Further, US Bank does not dispute that the documents at issue, including the Fraudulent DOT, were physically executed by Soboleva "as the managing member of The Heights." (*Id.* at p. 11:24-25.)

Despite this, US Bank asserts that "the unanswered question, and the question for a jury to answer, is whether [Roberts], as the actual sole manager of The Heights, was aware of or somehow involved in Soboleva's signing of the documents on behalf of The Heights." (*Id.* at p. 11:25-28.) It contends that if Roberts were aware of and consented to Soboleva executing the documents, then that is no different than Roberts executing the documents himself. (*Id.* at pp. 11:28-12:2.)

In a nutshell, US Bank's argument hinges on Soboleva's use of an email address with the same domain that apparently belongs to Roberts: interfacepropertygroup.com. (Opposition, p. 12:7-12.)

To support the argument, US Bank directs the Court to Roberts's sworn deposition where he states he *had not* heard of Interface Property Group prior to the lawsuit, does not know anyone that has an email address that ends in interfacepropertygroup.com, and never gave First American Title an email address of paul@interfacepropertygroup.com. (US Bank's Statement of Evidence ("SOE"), pp. 34, 35, 43.) US Bank provides documents from First American Title that list Roberts as the buyer of the Subject Property and contain the paul@interfacepropertygroup.com email address. (See SOE, pp. 72, 73.) In reply, The Heights states that US Bank's evidence omits that First American Title "provided them with [Roberts's] real email address . . . and that First American also produced communications with Mr. Roberts using his actual email address in the 2014-2015 time period." (Reply, p. 13:24-27, citing Cestero Decl., Ex. 1.)

But even if the email address belongs to Roberts and Soboleva used the same domain name, as The Heights states in reply, this is insufficient to establish an agency relationship between Roberts and Soboleva such that Soboleva had authority to execute a deed on behalf of The Heights.

"The existence of an agency relationship and the extent of the authority of the agent are questions of fact for the jury, unless the evidence is susceptible of but one inference." (*California Viking Sprinkler Co. v. Pacific Indem. Co.* (1963) 213 Cal.App.2d 844, 850 [internal citations omitted].) "[T]he burden of proving agency, as well as scope of the agent's authority, rests upon the party asserting the existence thereof and seeking thereby

to charge the principal upon representations of the agent.” (*Ibid.*) The party must show the existence of the agency relationship and authority of the agent to bind the principal to the transaction upon which the action is brought. (*Ibid.*) “The essential elements necessary to establish an agency relationship are manifestation of consent by one person to another that the other shall act on his or her behalf and subject to his or her control, and consent by the other so to act.” (*Church Mutual Ins. Co., S.I. v. GuideOne Specialty Mutual Ins. Co.* (2021) 72 Cal.App.5th 1042, 1062 [internal quotations omitted].) Importantly, an agency, whether actual or ostensible, “cannot be created by the conduct of the agent alone; rather, conduct by the principal is essential to the create the agency. The principal must in some manner indicate that the agent is to act for the principal, and the agent must act or agree to act on the principal’s behalf and subject to the principal’s control.” (*Hearden v. Windsor Redding Care Center, LLC* (2024) 103 Cal.App.5th 1010, 1020 [internal citations and quotations omitted].)

Finally, a party “does not meet its burden of proof . . . when it does not present any evidence that the purported principal’s conduct caused the agent . . . to believe that the agent had the authority to bind the principal.” (*Ibid.*)

Here, the only related evidence proffered by US Bank is that Soboleva used the email vicotria@interfacepropertygroup.com to communicate with Aureus. Further, as The Heights notes in Reply, there is no evidence that Roberts gave Soboleva, through his own conduct, authority to bind The Heights. (Reply, p. 13:1-3.). And there is also no evidence that Roberts ever sent an email using paul@interfacepropertygroup.com to communicate with Soboleva. (*Id.* at p. 13:3-5.)

The Heights’ arguments are persuasive and right. The Court finds that there is *no evidence* that The Heights, or Roberts as the sole managing member of The Heights, caused Soboleva to believe she had the authority to sign the Fraudulent DOT as if she were the managing member of The Heights or that Roberts ratified such conduct. Hence, US Bank has failed to establish a triable issue of material fact as to the Third Cause of Action and the Fourth Cause of Action. And as US Bank has failed to establish a triable issue of material fact, The Heights is entitled to Summary Adjudication in its favor on the Third Cause of Action and the Fourth Cause of Action.

Accordingly, the Motion for Summary Adjudication is **GRANTED**.¹

¹ As for The Heights’ request for sanctions against U.S. Bank under C.C.P. § 437c(j) made for the first time in its Reply brief for, among other things, “its attorney’s fees of \$16,227.50, incurred in connection with responding to U.S. Bank’s bad faith affidavit,” Reply at 14 n.2, this request for sanctions is **DENIED** in all respects. First, the plain text of Section 437c(j) states that “[s]anctions *shall not* be imposed pursuant to this subdivision except on notice”—and there is no noticed motion here for sanctions. C.C.P. § 437c(j) (emphasis added). Second, appellate precedent holds that attorneys’ fees are not recoverable under Section 437c(j). *Collins v. Dept. of Transportation*, (2003) 114 Cal. App. 4th 859, 869-870. This Court is not free to ignore that appellate precedent just because The Heights thinks *Collins* was “wrongly decided.” Reply at 14 n.2. The Heights

Conclusion and Order

The Heights' Motion for Summary Adjudication is **GRANTED** as follows:

1. The Court **GRANTS** Summary Adjudication on The Heights's Third Cause of Action for Declaratory Relief in favor of The Heights and against Defendants Victoria Soboleva, Aureus Finance Group, LLC, U.S. Bank Trust National Association, and FCI Lender Services, Inc. because there is no triable issue of material fact and The Heights is entitled to Summary Adjudication on the Third Cause of Action as a matter of law.
2. The Court **GRANTS** Summary Adjudication on The Heights's Fourth Cause of Action for Quiet Title in favor of The Heights and against Defendants Victoria Soboleva, Aureus Finance Group, LLC, U.S. Bank Trust National Association, and FCI Lender Services, Inc. because there is no triable issue of material fact and The Heights is entitled to Summary Adjudication on the Fourth Cause of Action as a matter of law.

SO ORDERED.

Date: July 15, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

can go petition the Legislature to change *Collins*. Third, The Heights has not convinced the Court that the filing of the U.S. Bank's affidavit itself caused The Heights to incur any *reasonable* expenses. Do not overreach.

Line 4

Case Name: *Bathena Dixon v. General Motors, LLC, et al.*

Case No.: 23CV426612

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant General Motors LLC (“GM”) moves under Code of Civil Procedure Section 437c for Summary Judgment or, in the alternative, for Summary Adjudication in its favor on each of the six Causes of Action in Plaintiff’s First Amended Complaint. Notice of Motion (the “Motion”) at 2:4-20 (filed: Dec. 10, 2025). The Motion is made on the grounds that:

1. On the First, Second, and Third Causes of Action for Violation of Subdivisions (D) & (B) & (A)(3) of Civil Code Section 1793.2, respectively, Plaintiff cannot pursue breach of express warranty claims under Song-Beverly against GM concerning a vehicle that Plaintiff did not purchase as “a new motor vehicle”;
2. On the Fourth Cause of Action for Breach of the Implied Warranty of Merchantability, Plaintiff cannot pursue breach of implied warranty claims against GM based on a vehicle she bought “used”;
3. On the Sixth Cause of Action for Fraudulent Inducement-Concealment, because the information that GM alleged failed to disclose was publicly available; and
4. On the Fifth Cause of Action for Violation of the Magnuson-Moss Warranty Act, because Plaintiff’s Magnuson-Moss warranty claim fails alongside her Song-Beverly state law claims.

Id. at 2:4-20.

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff Bathena Dixon (“Plaintiff”) brings this action against Defendants General Motors Inc. and Does 1 through 10, inclusive, for claims related to Plaintiff’s purchase of a 2019 Chevrolet Volt. (Complaint, ¶ 6.) Plaintiff alleges that on or about April 8, 2023, Plaintiff entered into a warranty contract with Defendant GM regarding a 2019 Chevrolet Volt, which was manufactured and or distributed by Defendant GM. (*Ibid.*)

In the First Amended Complaint (“FAC”) filed on May 29, 2024, Plaintiff asserts six causes of action: (1) violation of Plaintiff’s statutory rights under Civil Code section 1793.2, subdivision (d); (2) violation of Plaintiff’s statutory rights under Civil Code section 1793.2, subdivision (b); (3) violation of Plaintiff’s statutory rights under Civil Code section 1793.2, subdivision (a)(3); (4) breach of implied warranty of merchantability under Civil Code sections 1791.1, 1794, and 1795.5; (5) violation of the Magnusson-Moss Warranty Act; and (6) fraudulent inducement–concealment. On January 31, 2025, this court sustained Defendant’s demurrer to the first cause of action without leave to amend and overruled Defendant’s demurrer to the FAC’s second through sixth causes of action.

On December 10, 2025, Defendant filed a motion for summary judgment, or summary adjudication in the alternative (“Motion for Summary Judgment”), pursuant to Code of Civil Procedure section 437c. The motion is unopposed.

Analysis of the Motion

I. Legal Standard on Motion for Summary Judgment or Summary Adjudication

A motion for summary judgment “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.) “A defendant seeking summary judgment must show that at least one element of the cause of action cannot be established, or that there is a complete defense to the cause of action...The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72, internal quotation marks and citations omitted, emphasis added.) When a defendant moves for summary judgment, “its declarations and evidence must either establish a complete defense to plaintiff’s action or demonstrate the absence of an essential element of plaintiff’s case. If plaintiff does not counter with opposing declarations showing there are triable issues of fact with respect to that defense or an essential element of its case, the summary judgment must be granted.” (*Gray v. America West Airlines, Inc.* (1989) 209 Cal.App.3d 76, 81 (*Gray*).)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Aguilar, supra*, 25 Cal.4th at p. 844, internal quotation marks omitted.) The moving party’s evidence is strictly construed, while the opposing party’s evidence is liberally construed. (*Id.* at p. 843.)

“Summary adjudication works the same way, except it acts on specific causes of action or affirmative defenses, rather than on the entire complaint. (Code Civ. Proc. § 437c, subd. (f).) A summary adjudication is properly granted only if a motion therefore completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (§ 437c, subd. (f)(1).) Motions for summary adjudication proceed in all

procedural respects as a motion for summary judgment. (Code Civ. Proc. § 437c, subd. (f)(2).)” (*Hartline v. Kaiser Foundation Hospitals* (2005) 132 Cal.App.4th 458, 464.) of Civil Code section 1793.2, subdivision (d)

II. First Cause of Action Moot

This Court has already sustained Defendant’s demurrer to Plaintiff’s first cause of action *without leave to amend* in its Order on Defendants’ Demurrer to the First Amended Complaint filed January 31, 2025 (“Order”), which renders Defendant’s Motion for Summary Judgment or Summary Adjudication of the FAC’s first cause of action moot. (Order, p. 2.)

Hence, the Motion for Summary Adjudication of Plaintiff’s first cause of action is **DENIED** as moot.

III. Second and Third Causes of Action: Statutory Violations

Defendant moves for summary judgment, and in the alternative, summary adjudication, of the FAC’s second and third causes of action for violations of Civil Code section 1793.2, subdivisions (b) and (a)(3), respectively, also called the Song-Beverly Act. Defendant’s Motion for Summary Judgment (“Motion for Summary Judgment”) argues that the FAC’s second and third causes of action are foreclosed by *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189 (*Rodriguez*). The court in *Rodriguez* held that Civil Code section 1793.2, subdivision (d)(2) applies only to vehicles for which a manufacturer’s new car warranty is issued with the sale, and not to used vehicles sold with a remaining balance on a preexisting warranty. (*Id.* at p. 206.)

The FAC’s second cause of action alleges a violation of section 1793.2 subdivision (b), which requires manufacturers to commence service and repair of goods not conforming with applicable express warranties within 30 days. (Civ. Code, § 1793.2, subd. (b).) The FAC’s third cause of action alleges a violation of section 1793.2 subdivision (a)(3), which requires manufacturers to make sufficient service literature and replacement parts to effect repairs during the express warranty period available to authorized service and repair facilities. (Civ. Code, § 1793.2, subd. (a)(3).)

It is true and undisputed that Plaintiff bought the vehicle at issue used, and that Defendant GM was not a party to that transaction and did not issue or provide any new or additional warranty coverage to Plaintiff or for the vehicle when Plaintiff bought that vehicle. (Defendant’s Separate Statement, Undisputed Material Fact (“UMF”), Nos. 2, 8.) Plaintiff received the balance of coverage under the Warranty that GM issued when it sold the vehicle new, prior to Plaintiff’s purchase. (UMF, No. 8.)

But as this Court has already in its Order dated January 31, 2025 (overruling GM’s Demurrer on these same causes of action), the court in *Rodriguez* only ruled on the applicability of Civil Code section 1793.2, subdivision **(d)(2)**, and Plaintiff’s second and third causes of action against defendant GM are for violations of different subdivisions of Civil Code section 1793.2, specifically subdivisions **(b)** and **(a)(3)**. (Order, pp. 2-4; see

also *People v. Leal* (2023) 93 Cal.App.5th 1143, 1162 [an opinion is not authority for propositions not considered and decided].) And importantly, whereas the plain text of subdivision (d)(2) applies to cases involving “service or repair [of] a new motor vehicle,” nowhere does the text of subdivisions (b) or (a)(3) limit their applicability to new motor vehicles. *See* Order at 2:24-4:9 (Jan. 31., 2025) (same).

Accordingly, Defendant’s Motion for summary adjudication of the FAC’s second and third causes of action on the basis that those causes of action are foreclosed by *Rodriguez* is **DENIED**.

IV. Fourth Cause of Action: Breach of Implied Warranty of Merchantability

Defendant argues that the FAC’s fourth cause of action, for breach of implied warranty of merchantability, fails because Plaintiff purchased the vehicle used. “[O]nly distributors or sellers of *used* goods – not manufacturers of *new* goods – have implied warranty obligations in the sale of *used goods*.” (*Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399.)

It is an undisputed fact that Plaintiff purchased the vehicle used. (UMF, No. 2.)

Accordingly, Defendant’s Motion for summary adjudication of the FAC’s fourth cause of action for breach of implied warranty of merchantability is **GRANTED**.

V. Fifth Cause of Action: Violation of Magnusson-Moss Act

Defendant argues that the FAC’s fifth cause of action, for violation of the federal Magnusson-Moss Act, also fails because Plaintiff has failed to state a warranty claim under state law. “The Magnusson-Moss Warranty – Federal Trade Commission Improvement Act (Magnuson-Moss), 15 United States Code section 2301 et seq., authorizes a civilsuit [*sic*] by a consumer to enforce the terms of an implied or express warranty. Magnuson-Moss calls for the application of state written and implied warranty law, not the creation of additional federal law...(f)ailure to state a warranty claim under state law necessarily constituted a failure to state a claim under Magnuson-Moss.” (*Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 832-833, internal case citation and quotation marks omitted.)

But as the Court above has denied summary adjudication of the FAC’s second and third causes of action, Plaintiff thus has active warranty claims under state law.

Accordingly, Defendant’s Motion for summary adjudication of the FAC’s fifth cause of action for violation of Magnusson-Moss Act is **DENIED**.

VI. Sixth Cause of Action: Fraudulent Inducement/Concealment

Defendant also moves for summary judgment, or in the alternative, summary adjudication of the FAC’s sixth cause of action for fraudulent inducement/concealment.

The FAC alleges that Defendant knew of a battery defect issue with the vehicle Plaintiff purchased and failed to disclose that issue to Plaintiff. (FAC, ¶¶ 92-104.) Defendant argues that Defendant had no duty to disclose and that Plaintiff's allegations lack the requisite specificity. (Motion for Summary Judgment, p. 9:21-26.)

“[T]he elements of a cause of action for fraud based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Kaldenbach v. Mutual of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850, internal quotation marks and citations omitted.)

The FAC alleges that Defendant “nevertheless concealed and failed to disclose the defective nature of the Vehicle, its lithium-ion battery to Plaintiff at the time of sale, and thereafter, including during successive repair visits to GM’s authorized dealership. Plaintiff alleges that GM failed to disclose the existence of the Battery Defect at GM’s authorized dealership and during direct calls to Defendant.” (FAC, ¶ 97.)

It is undisputed that Defendant was not a party to the transaction in which Plaintiff purchased the vehicle at issue. (UMF, No. 3.) “In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff.” (*Warner Constr. Corp. v. City of Los Angeles* (1970) 2 Cal.3d 285, 294, fns. omitted.) “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 312.)

But the FAC alleges that Plaintiff presented the vehicle to GM’s authorized dealership in repair visits, suggesting that there may have been “direct dealings” between Plaintiff and Defendant. (FAC, ¶ 97.) The FAC thus alleges Defendant had a duty to disclose when Plaintiff presented the vehicle to Defendant at Defendant’s authorized repair shops. Thus, Defendant has not met its burden to “completely dispose of...” Plaintiff’s cause of action due to the FAC’s allegation of “direct dealings” between the Plaintiff and Defendant. (*Aguilar, supra*, 25 Cal.4th at p. 850.) Defendant also argues that Plaintiff’s fraud claim lacks adequate specificity. “The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157, internal citations omitted.) However, “it is harder to apply this rule to a case of simple

nondisclosure...[l]ess specificity should be required of fraud claims when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy[.]” (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384, internal citations and quotation marks omitted.)

Plaintiff alleges a cause of action for nondisclosure. Plaintiff alleges that “GM and its directors, officers, employees, affiliates, and/or agents...concealed and failed to disclose the defective nature of the Vehicle, its lithium-ion battery to Plaintiff...during successive repair visits to GM’s authorized dealership...and during direct calls to Defendant.” (FAC, ¶ 97.) It is undisputed that Plaintiff did not purchase the vehicle at issue from a GM authorized dealership. (UMF, Nos. 1-3.) However, Plaintiff alleges that he took the vehicle to repair visits to GM’s authorized dealership and spoke with Defendant over the phone. Additionally, Plaintiff alleges that Defendant knew about the battery defect “since 2016, if not before” and “failed to provide an adequate repair to consumers or disclose the defect to potential buyers.” (FAC, ¶ 36.) The FAC’s fraud claim is alleged with adequate specificity because the FAC “provides defendants with sufficient notice of the particular claims against them.” (*Jones v. ConocoPhillips Co.* (2011) 198 Cal.App.4th 1187, 1200 (*Jones*).) In *Jones*, the family of a Goodyear Tire Company and the Upjohn Company employee sued 19 manufacturers of 34 chemical products alleging that the decedent employee’s exposure to those products over the course of his employment caused his illness and death. (*Ibid.*) The court held that plaintiff stated a viable claim for fraudulent concealment because the complaint sufficiently put all of the defendants on notice of the facts it allegedly concealed from plaintiff. (*Ibid.*) “Based upon the existing allegations, each defendant has received notice of the particular product it made that was used at the Goodyear and Upjohn plants at which Carlos worked. The pleading further alleges these products ‘contained significant concentrations of organic solvents ... and other toxic chemicals’ and ‘[t]he toxicity of various organic solvents to the liver and kidney has long been recognized.’ Each defendant is therefore on notice that it allegedly concealed or failed to disclose the toxic properties of the product it sold to Goodyear and Upjohn during the course of Carlos’s employment.” (*Ibid.*)

Here, Plaintiff has alleged that a 2019 Chevrolet Volt manufactured by the Defendant “contained one or more design and/or manufacturing defects in the battery...that causes the high voltage battery to overheat when charged to full capacity and results in overheating when charged to full capacity or near full capacity, losses of propulsion power while driving, catastrophic fire, no crank, reduced range, thermal runaway, and/or spontaneous combustion.” (FAC, ¶¶ 6, 21.) The FAC further alleges that Defendant “knew since 2016 that the model year 2017 or newer Chevrolet Volt EV vehicles, including 2017 Chevrolet Volt vehicles” had the battery defect. (FAC, ¶ 21.) As such, the claim for fraudulent inducement is adequately pled.

Finally, Defendant argues that Plaintiff’s fraud claim fails because the information Plaintiff claims was concealed was publicly available. Defendant argues that the National Highway Traffic and Safety Administration (“NHTSA”) maintains a publicly available website allowing anyone to view Defendant’s disclosures to NHTSA about the Volt at issue. (Motion for Summary Judgment, p. 10:15-23.) Defendant further argues that the

court may take judicial notice of this information because it is publicly available on a government website. (*Id.* at p. 10, fn. 1.) Evidence Code section 453 subdivision (b) requires the party seeking judicial notice to furnish the court with sufficient information to enable it to take judicial notice, which includes copies of the documents for which judicial notice is requested. (*In re Marriage of Brewster & Clevenger* (2020) 45 Cal.App.5th 481, 497-498.) GM merely provides the website from which it claims Plaintiff might have been able to glean the information allegedly withheld but does not establish the content of the website with respect to Plaintiff's vehicle. Defendant has not furnished the court with sufficient information to allow the court to take judicial notice and has not established what if anything the plaintiff would have found had he looked at the website. The content of the website provided by Defendant in the Motion for Summary Judgment cannot properly be judicially noticed. The separate statement does not indicate that the information Plaintiff claims was concealed was publicly available (See *Parsons v. Estenson Logistics, LLC* (2022) 86 Cal.App.5th 1260, 1265, fn. 5 [if it is not set forth in the separate statement, it does not exist].) Thus, Plaintiff's claim that Defendant failed to disclose material facts is not precluded.

Accordingly, as Defendant has not met its burden at the first step of the summary judgment analysis, Defendant's Motion for summary adjudication of the FAC's sixth cause of action for fraudulent inducement/concealment is **DENIED**.

Conclusion and Order

Defendant's Motion for Summary Adjudication is **GRANTED IN PART** and **DENIED IN PART** as follows:

1. The Motion for Summary Adjudication of Plaintiff's First Cause of Action is **DENIED** as moot.
2. The Motion for Summary Adjudication of Plaintiff's Second Cause of Action is **DENIED**.
3. The Motion for Summary Adjudication of Plaintiff's Third Cause of Action is **DENIED**.
4. The Motion for Summary Adjudication of Plaintiff's Fourth Cause of Action is **GRANTED**.
5. The Motion for Summary Adjudication of Plaintiff's Fifth Cause of Action is **DENIED**.
6. The Motion for Summary Adjudication of Plaintiff's Sixth Cause of Action is **DENIED**.

Moreover, as Defendant's Motion for Summary Adjudication has been **DENIED** for several causes of actions, it follows as a matter of logic and law that Defendant's Motion for Summary Judgment is **DENIED**.

SO ORDERED.

Date: July 15, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 5

Case Name: *Norma Rojas v. Spread Your Wings, LLC, et al.*

Case No.: 22CV400450

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Norma Rojas (“Plaintiff”) moves under Code of Civil Procedure Sections 2033.010, 2033.020, and 2033.280 to deem the truth of all matters specified in Plaintiff’s Request for Admissions, Set One (“RFAs”) served on Defendant Spread Your Wings, LLC (“Defendant”) on October 22, 2025, to be admitted by Defendant, and for monetary sanctions against Defendant including attorneys’ fees and costs for this Motion. Notice of Motion (the “Motion”) at 1:21-24 (filed: Dec. 19, 2025).

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admissions, Set One, on Defendant on October 22, 2025. Declaration of attorney Adam S. Juratovac In Support of Motion (“Juratovac Decl.”) at ¶ 2 & Exhibit A thereto (filed: Dec. 19, 2025).

Defendant never responded to the Requests for Admissions, Set One, despite his obligation to respond under Code of Civil Procedure Section 2033.240. Juratovac Decl. at ¶ 3.

Because Defendant failed to respond, Plaintiff now moves for an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Defendant the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One. C.C.P. 2033.280 (b). Plaintiff’s Memorandum of Points & Authorities in Support of Motion at 2:21-3:14.

Moreover, Defendant has failed to oppose the Motion, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).

The Motion is well supported by the law, well supported by the facts set forth in the Juratovac Declaration, and reasonable *except* with respect to the total amount of sanctions it seeks here as the Court will now explain.

Because Defendant has committed a misuse of the discovery process under Code of

Civil Procedure Section 2023.010(d) by failing to respond to these RFAs, an authorized method of discovery, the Court under Code of Civil Procedure Section 2023.030(a) “may impose a monetary sanction ordering that the one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the *reasonable* expenses, including attorneys’ fees, incurred by anyone as a result of that conduct.” C.C.P. § 2023.030(a) (emphasis added).

Hence, while the Court here may and will award Plaintiff a monetary sanction paid by Defendant for Plaintiff’s reasonable attorney’s fees and costs incurred for this Motion, the *amount* of this sanction is within the wide discretion of the Court. Simply put, the Court gets to determine what amount is *reasonable* under these circumstances.

Here, in this Motion, Plaintiffs requests that the Court impose a monetary sanction on Defendant in the total amount of \$3,542.70, specifically comprising (a) \$60 cost of filing the motion; (b) \$18.95 electronic filing fee; and (c) \$3,463.75 in attorneys’ fees. Juratovac Decl. at ¶ 8.

While the \$78.95 (\$60 + \$ 18.95) in filing costs sought is reasonable, the amount of \$3,463.75 for attorneys’ fees sought for this Motion is unreasonable because this Motion is a layup. All Plaintiff had to do to win was point that it duly served on Defendant the RFAs (she did); California law requires Defendant to respond to these RFAs (it does), and Defendant failed to respond (it never did respond). That reasonably should take able counsel for Plaintiff 1.50 hours total at a reasonable rate of \$700 per hour, which equals \$1,050.00 for reasonable attorneys’ fees incurred for this Motion.

Accordingly, the Court **GRANTS** and awards Plaintiff a total monetary sanction against Defendant of **\$1,128.95**, which equals \$1,050.00 in Plaintiff’s reasonable attorneys’ fees plus reasonable filing costs of \$78.15 for this Motion.

Conclusion & Order

Accordingly, Plaintiff’s Motion is **GRANTED**. Specifically, the Court **ORDERS**:

- 1. That the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One, served on Defendant on October 22, 2025, is deemed admitted by Defendant Spread Your Wings, LLC; and**
- 2. Within thirty days of today, Defendant Spread Your Wings, LLC must pay Plaintiff Norma Rojas a total monetary sanction of \$1,128.95 for Plaintiff’s reasonable attorneys’ fees and costs for this Motion.**

Defendant Spread Your Wings, LLC is put on **NOTICE** that if it fails to comply with this **ORDER** within 30 days of today, then Defendant Spread Your Wings, LLC will be subject to further escalating sanctions, including monetary and non-monetary sanctions such as evidentiary, issue, and terminating sanctions.

SO ORDERED.

Date: July 15, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 6

Case Name: *Joseph Rostam v. Daniel A. Gonzales, et al.*

Case No.: 25CV477783

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Joseph Rostam (“Plaintiff”) moves for an Order requiring all parties to participate in mediation in good faith within 45 days, requiring defense counsel to provide three available mediation dates within 10 court days, and for monetary sanctions of \$1,250.00 for unnecessary delay and wasted costs. Notice of Amended Motion (the “Amended Motion”) at 1:21-25 (filed: April 17, 2026).

The Amended Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

At the outset, the Court would like to state that it appreciates and understands Plaintiff’s frustration that caused him to bring this Amended Motion. And the Court certainly believes Plaintiff and finds it to be a fact that, as Plaintiff puts it, “Plaintiff has repeatedly cooperated in scheduling, paid mediation fees, and remained available [for mediation]. Prior mediation efforts stalled and later efforts were disrupted by cancellations and non-confirmations [by other parties in this action]. Amended Motion at 2:5-6. All true.

Moreover, this Court does encourage *all* parties, including in this civil action and all civil actions, to resolve their cases by mediation. Silicon Valley is blessed with many excellent, efficient, and effective mediators who each day help parties resolve their disputes amicably, often generating creative solutions and resolutions that enable the parties to move forward productively and peacefully. So, lest there be any doubt, the Court would welcome and encourage all parties in *this* case to resolve their disputes by mediation.

But Plaintiff’s Amended Motion has two fatal flaws.

First, while he asks the Court to compel all parties to participate in mediation, Plaintiff fails to argue let alone establish any statutory or contractual basis in law by which the Court could force all parties here to mediate this case.

Second, and more importantly in the Court’s view, even assuming for the sake of argument that this Court has some power (inherent or otherwise) to order all these parties to participate in mediation, to do so would make no practical sense because the fundamental principles of mediation are:

- *voluntary* participation, and
- *self-determination* of each party.

And that is not just the policy view of this Court; that is the clear law of California set forth in California Rule of Court 3.853 on mediation, which states in mandatory terms:

A mediator must conduct the mediation in a manner that supports the principles of voluntary participation and self-determination by the parties. For this purpose the mediator must:

1. Inform the parties, at or before the outset of the first mediation session, that any resolution of the dispute in mediation requires a voluntary agreement of the parties;
2. Respect the right of each participant to decide the extent of his or her participation in the mediation, *including the right to withdraw from the mediation at any time*; and
3. Refrain from coercing any party to make a decision *or to continue to participate in the mediation*.

C.R.C. 3.853 (emphasis added).

So in light of these well-settled, bedrock principles that hold as a matter of law that any party may withdraw from mediation at any time and has the right *not* to continue to participate in the mediation at all, it would make no practical sense whatever for this Court to Order any of these parties to a mediation that they would have the right to immediately withdraw from and cease participating in. And this Undersigned Judge will not Order something that makes no practical sense and is not required by law.

Likewise, regarding Plaintiff's request for sanctions against Defendants (and any other parties in the Cross-Action) for causing delay and wasting costs regarding a mediation, the Court must respectfully deny that request as well because the Court cannot and will not sanction any party for failing to engage in mediation when under California law participating in mediation is *voluntary*.

While resolving cases by mediation by agreement of the parties themselves may be *highly* preferable to the costs and uncertainty of traditional litigation by civil action, no party is *required* to do so in California. And this Court won't sanction a party for not doing something that is voluntary.

So while this Court encourages all the parties here to resolve their disputes in mediation, the Court will not force them to do so or punish them for not doing so.

Conclusion & Order

Accordingly, the Court respectfully **DENIES** Plaintiff's Amended Motion in all respects.

SO ORDERED.

Date: July 15, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 7

Case Name: *City of Sunnyvale v. Rosella Montoya Lopes, et al.*

Case No.: 24CV451323

*See **Order*** above. (As the Court dismissed without prejudice this receivership action on agreement of all parties [including Mr. Nigro, whom the Court first appointed as Successor in Interest to the deceased Defendant Lopes] at the July 8, 2026 Case Management Conference [*see* 07/08/2026 Minute Order], this Motion objecting to the November 26, 2026 Receiver's Report is **VACATED as MOOT.**)

Line 8

Case Name: *Vimal Kohli v. Vishal Saxena, et al.*

Case No.: 25CV456459

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Vimal Kohli (“Plaintiff”) moves under Code of Civil Procedure Section 473(b) on both mandatory and discretionary grounds to set aside the Court’s Order entered on November 26, 2025, which among other things Sustained Without Leave to Amend Defendant’s Demurrer to Plaintiff’s First Amended Complaint (“FAC”). Notice of Motion (the “Motion”) at 1:25-2:2 (filed: Jan. 22, 2026). Plaintiff asserts that this relief is warranted because Plaintiff’s failure to timely file opposition papers (to Defendant’s Demurrer and Defendant’s Motion to Strike Portions of Plaintiff’s First Amended Complaint) was the result of mistake, inadvertence, surprise, and excusable neglect. *Id.* at 2-3.

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

The Court agrees with most, but not all, of the arguments made in Plaintiff’s Reply papers.

First, the Court agrees with Plaintiff that the Court’s Order entered on November 26, 2025, which among other things Sustained Without Leave to Amend Defendant’s Demurrer to Plaintiff’s FAC, is, ought to be, and will here be treated as a *dismissal* for purposes of the analysis under Code of Civil Procedure Section § 473(b). Pl. Sur-Reply In Support of Motion (“Reply”) at 4:9-6:23. Sustaining the demurrer *without* leave to amend ended Plaintiff’s claims and case.

And because the Court rules that its November 26, 2025 Order Sustaining the Demurrer Without Leave to Amend is a dismissal for purposes of the Section 473(b) analysis, it follows as a matter of logic and law that the mandatory provision of Section 473(b) applies here: “the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorneys’ sworn affidavit attesting to the attorney’s mistake, inadvertence, surprise, or neglect, vacate any . . . (2) resulting . . . *dismissal* . . . entered against the attorney’s client[.]” C.C.P. § 473(b) (emphasis added).

Having found the mandatory relief provision applies here, the Court further agrees with Plaintiff that “[t]he mandatory relief provision requires only that the attorney submit a declaration stating [under oath] that the default or dismissal was caused by the attorney’s mistake, inadvertence, surprise, or neglect.” Reply at 7:17-18.

And here, the Court further agrees with Plaintiff that the Declaration of attorney Dylan Hackett, Esq., of the Hackett Law Firm, which was timely filed, established that the fault of attorney Hackett caused the November 26, 2026 Order that operates as a dismissal of Plaintiff's case. Reply at 7:16-8:8 (detailing that Counsel's Declaration Satisfies the Affidavit of Fault Requirement). Lest there be any doubt, the Court now finds that his Declaration shows this dismissal was in fact *caused* by the neglect of attorney Dylan Hackett, Esq., of the Hackett Law Firm, such that the Court is required to and does now VACATE November 26, 2025 Order under the mandatory provision of Section 473(b).

Accordingly, the Court GRANTS Plaintiff's Motion to Vacate the Court's November 26, 2025 Order under the mandatory provision of Section 473(b).²

Moreover, for clarity of the record, so there is no doubt as to the operative pleading going forward, the Court in the broad exercise of its discretion now GRANTS the further request in this Motion to give Plaintiff leave to file the Second Amended Complaint that Plaintiff attached as Exhibit B to this Motion.

Accordingly, Plaintiff is ORDERED to file this Second Amended Complaint within 10 days of today.³ Defendant, in turn, has the right to Answer or Respond to the Second Amended Complaint in any manner allowed, and within the time period allowed, by the Code of Civil Procedure.

All that said, the Court disagrees with Plaintiff when it comes to the issue of awarding sanctions against Plaintiff's counsel Hackett now. As the Court has now granted Plaintiff's own Motion for relief under the mandatory provision of Section 473(b) based on attorney Hackett's sworn Declaration of fault, the Court is required to award mandatory monetary sanctions to be paid by attorney Hackett himself now. The plain text of Section 473(b), which Plaintiff invoked by bringing this Motion, states: "the court shall, whenever relief is granted based on an attorneys' affidavit of fault, *direct the attorney* to pay reasonable compensatory legal fees and costs to opposing counsel or parties." C.C.P. § 473(b) (emphasis added).

In light of that plain statutory text, Plaintiff's argument that the Court should not award attorney's fees because Section 473(b) "is not [meant] to punish *the innocent client*" (Reply at 13:7) (emphasis added) misses the point entirely. For the Court is not going to award *any* monetary sanction at all against his *innocent client* who is Plaintiff

² Since the Court Grants the Motion under the mandatory provision, the Court need not and does not address the plethora of arguments of the parties about whether the discretion provision of Section 473(b) applies or not.

³ Moreover, since the Court now gives Plaintiff's leave to file its *Second* Amended Complaint, the Court need not and does not now address any arguments made in Defendant's Demurrer to (and Motion to Strike Portions of) the *First* Amended Complaint, which are now moot.

Vimal Kohli—but the Court is going award a monetary sanction against and to be paid directly by attorney Dylan Hackett himself. Which is exactly what Section 473(b) requires.

And this is only fair. Reading attorney Hackett's Declaration, attorney Hackett himself swears that he "take[s] full responsibility" for the neglect that resulted in the dismissal here. Hackett Decl. at ¶ 6. His client did not cause the dismissal, attorney Hackett and his Hackett Law Firm did. Therefore, the Court ORDERS that attorney Hackett himself will pay the monetary sanction that the Court awards in this Order. And Attorney Hackett is ORDERED not to seek reimbursement from his innocent client for any of this monetary sanction.

Attorney Hackett's fault caused this dismissal; Attorney Hackett's fault caused all the time and effort that Defendant has had to spend to brief, argue, and oppose this Motion; so Attorney Hackett himself will pay this mandatory monetary sanction. C.C.P. § 473 (b).

While the Court interprets Section 473(b) to require Attorney Hackett himself to pay this monetary sanction for Defendant's reasonable attorneys' fees incurred for opposing this Motion, the determination of what amount attorneys' fees is reasonable here is within the broad discretion of this Court.

Here, Defendant requests \$10,000 for its attorneys' fees incurred in opposing this Motion, specifically comprising \$5,100 for the work of principal attorney Ondrej Likar for 8.5 hours of work at an hourly rate of \$600 per hour, plus \$4,900 for the work of associate attorney Nicholas N. Stotter for 14 hours of work at an hourly rate of \$350 per hour. Declaration of Ondrej Likar In Support of Defendant's Opposition to Motion at ¶ 10 (filed: July 1, 2026).

In light of the relevant legal market in California, the Court finds the hourly rates sought for attorney Likar and attorney Stotter, \$600 per hour and \$350 per hour, respectively, to be reasonable.

Considering the relatively complexity of the Motion, including all the lengthy new arguments that Plaintiff presented in Plaintiff's "Sur-Reply" papers that Defendant has had to prepare to address at the July 15, 2026 hearing, the Court finds that the 8.5 hours of work sought by principal attorney Likar to be reasonable. But the Court finds the 14 hours of work for the assistance performed by associate attorney Stotter to be unreasonable, too much, and so the Court reduces the number of hours for which a sanction will be paid for attorney Stotter's work from 14 to 4 hours. So the Court finds that the reasonable number of hours for attorney Likar's work for this Motion is 8.5 hours, and the reasonable number of hours for attorney Stotter's work is 4.0 hours.

Accordingly, the total amount of the monetary sanction that will be paid by Plaintiff's Attorney Hackett for the reasonable attorneys' fees incurred by Defendant for this Motion is **\$6,500.00**, which equals \$5,100 for principal attorney Likar's work (\$5,100 = 8.5 hours at \$600 hour), plus \$1,400 for associate attorney Stotter's work

(\$1,400 = 4.0 hours at \$350 per hour). The Court further Orders that attorney Hackett himself will pay this \$6,500.00 monetary sanction to defense counsel within 60 days of today.

Conclusion & Order

Accordingly, the Court **GRANTS** Plaintiff's Motion as follows. Specifically, the Court **ORDERS**:

1. The Court's Order entered on November 26, 2025, which Sustained Without Leave to Amended Defendant's Demurrer to the First Amended Complaint, and Granted Defendant's Motion to Strike Portions of the First Amended Complaint, is hereby **VACATED** under the mandatory provision of Code of Civil Procedure Section 473(b).
2. Within ten days of today, Plaintiff is **ORDERED** to file its Second Amended Complaint. Defendant, in turn, may Answer or Respond to the Second Amended Complaint in any manner allowed, and within the time allowed, by the Code of Civil Procedure.
3. Within 60 days of today, attorney Dylan Hackett, Esq., of The Hackett Law Firm, is **ORDERED** himself to pay \$6,500.00 to defense counsel as a monetary sanction for Defendant's reasonable attorneys' fees incurred for this Motion under Code of Civil Procedure Section 473(b).

SO ORDERED.

Date: July 15, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 9

Case Name: *Anthony Tomol v. Ford Motor Company, et al.*

Case No.: 25CV478692

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Hemborg Ford (“the Dealership”) moves under the Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) and Code of Civil Procedure Section 1281.4 to compel arbitration and stay this civil action pending the completion of that arbitration. Notice of Motion (the “Motion”) at 1:4-20 (filed: Dec. 8, 2025).

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

According to the Complaint, Plaintiff Anthony D. Tomol (Plaintiff) purchased a 2021 Ford Mustang Mach-E (Subject Vehicle) in November 2021 from the Dealership. (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to the Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 47.) Plaintiff alleges that the Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 49.) Plaintiff sued the Dealership and Ford Motor Company in October 2025. The sole cause of action alleged against the Dealership is for negligent repair.

At issue is the Dealership’s Motion to compel arbitration, based on the Retail Installment Sales Contract (RISC) signed by Plaintiff and the Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the Court **GRANTS** the Motion and **STAYS** this civil action in its entirety until that arbitration is complete.

Legal Standard on Motion to Compel Arbitration

The Dealership asserts that the Federal Arbitration Act (FAA) governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp. 6:25-7:1.) The Court agrees. The RISC’s arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 *et seq.*) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A.)

Under the FAA, the Court’s role in deciding this Motion is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th

Cir. 2000) 207 F.3d 1126, 1130.)

To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Moreover, Code of Civil Procedure Section 1281.2 provides in mandatory terms: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court *shall* order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement.” C.C.P. § 1281.2(a) & (b) (emphasis added).

In determining the threshold question of whether an arbitration agreement exists between these parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.

Analysis of the Motion

I. There is a Valid Agreement to Arbitrate here.

The arbitration provision in the RISC provides, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A).

Here, Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration

provision:

“Agreement to Arbitrate. By signing below, you agree that pursuant to the Arbitration Provision on the reverse side of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.”

(*Id.*)

The RISC further drew the arbitration provision to Plaintiffs’ attention through the following disclaimer:

“ . . . YOU ACKNOWLEDGE THAT YOU HAVE READ BOTH SIDES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON THE REVERSE SIDE, BEFORE SIGNING BELOW.”

(*Id.*)

Plaintiff’s signature on those sections of the RISC shows Plaintiff’s express assent to this arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.”].)

While Plaintiff argues the Dealership failed to properly authenticate the RISC and thus failed to meet its burden of proving the existence of a valid agreement to arbitrate, that argument is unavailing because “moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted.) Here, the Dealership attached a copy of the RISC signed by Plaintiff as Exhibit A to the Declaration of Trina Clayton. And the Dealership has also set forth the terms of the arbitration provision in the motion itself. (Mtn. to Compel Arbitration at pp. 3:18-4:11.) In any event, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.)

Accordingly, the Court finds and rules that the Dealership has shown a valid agreement to arbitrate with Plaintiff here.

II. The Scope of the Arbitration Agreement Covers Plaintiff’s Claims

Here, the arbitration provision broadly applies to “[a]ny claim or dispute, whether in contract, tort, statute or otherwise..., between you and us..., which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship.” (Clayton Decl., Ex. A.) Plaintiff’s sole cause of

action against the Dealership is a tort action for negligent repair. Plaintiff and the Dealership are the parties to the transaction. Plaintiff's action relates to the condition of the vehicle, namely the condition of the vehicle following repair by the Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both "this contract" and "any resulting transaction or relationship" between the parties. Plaintiff's claim against the Dealership is covered by the arbitration provision.

Plaintiff relies on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to argue "warranty performance is not arbitrable through the form Sales Contract proffered by [the Dealership]." (Opposition at p. 2:8-10.) That opinion is distinguishable. *Ford Motor Warranty Cases* involved an attempt by an automobile manufacturer to compel arbitration based on a sales contract between a buyer and a dealership to which the manufacturer was not a party. The Supreme Court rejected the manufacturer's attempt to compel arbitration on a third-party equitable estoppel theory. (*Id.* at p. 1126.) In sharp contrast, here the entity petitioning to compel arbitration is a party to the contract containing the arbitration provision. The RISC is an agreement Plaintiff entered into with the Dealership—which may compel arbitration of Plaintiff's claims here.

In sum, the Court finds and rules that the broad scope of the arbitration agreement between Plaintiff and the Dealership covers Plaintiff's claims here. Accordingly the Dealership's Motion to compel arbitration is **GRANTED**.

This Action is Stayed in its Entirety

The Dealership requests a stay of the entire action. As the Dealership notes, Plaintiff has sued two entities, Ford Motor Company and the Dealership, for different causes of action. The Dealership argues that "[p]roceeding against both defendants in separate forums carries an extremely high risk of rendering inconsistent rulings and rendering arbitration as to [the Dealership] ineffective." (Reply at p. 8:24-25). The Court agrees.

Moreover, Plaintiff has not offered any arguments opposing a stay to the entire action.

After carefully weighing the positions and arguments of all parties, the Court in the broad exercise of its discretion **STAYS** of this civil action in its entirety under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3.

Conclusion & Order

Accordingly, the Motion to Compel Arbitration is **GRANTED** and this action is **STAYED** in its entirety pending completion that arbitration.

SO ORDERED.

Date: July 15, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

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